Salient features of IT Act 2000

Link: https://www.scribd.com/document/712999818/Salient-Features-of-IT-Act-2000

IT Act 2000: Offences & Penalties

Link: https://www.scribd.com/document/476120403/Offences-Penalties-under-the-IT-Act-2000

Key Provisions of the IT Act 2000

Link: https://www.lloydlawcollege.edu.in/blog/cyber-crime-laws-india-it-act-sections.html

Recent amendments by the IT (Amendment Act) 2008

Link: https://www.linkedin.com/pulse/what-major-amendments-made-act-since-its-enactment-rohilla-d2zcf/

Section 66A

Punishment for Sending Offensive Messages through Communication Service

Section 66A was inserted into the IT Act by the 2008 Amendment and came into force on 27 October 2009. It made it a criminal offence to send certain kinds of messages using a computer or a communication device (such as a mobile phone).

What the Section covered

A person committed the offence if they sent, through a computer resource or communication device, any of the following:

1. **Grossly offensive or menacing information.**
2. **Information the sender knew to be false**, sent persistently for the purpose of causing annoyance, inconvenience, danger, obstruction, insult, injury, criminal intimidation, enmity, hatred, or ill will.
3. **Emails or electronic messages** sent to cause annoyance or inconvenience, or to deceive or mislead the recipient about the origin of the message.

Punishment: imprisonment up to **3 years** and a fine.

The offence was **cognizable**, which meant the police could arrest without a warrant. That feature became central to the controversy.

Why it became controversial

The Section used broad, undefined terms such as "annoyance," "inconvenience," "grossly offensive," and "ill will." Police used it against people for ordinary online criticism, satire, and political comment. Well-known examples include:

- **Palghar, Maharashtra (2012):** Two young women were arrested over a Facebook post questioning the city-wide shutdown after the death of a political leader, and over another woman "liking" the post.
- **Professor Ambikesh Mahapatra (2012):** A professor in West Bengal was arrested for circulating a cartoon about a political leader by email.
- **Ravi Srinivasan (2012):** A businessman in Puducherry was arrested over a tweet about a politician's son.

These arrests led to public criticism and petitions before the Supreme Court, including one filed by law student **Shreya Singhal**.

The Supreme Court's decision

In ***Shreya Singhal v. Union of India*, decided on 24 March 2015**, a Bench of Justices J. Chelameswar and R.F. Nariman **struck down Section 66A entirely**. The main reasons were:

1. **Violation of Article 19(1)(a):** The Section restricted freedom of speech and expression, which the Constitution guarantees.
2. **Not saved by Article 19(2):** The Constitution permits restrictions on speech only on specific grounds, such as the security of the State, public order, decency or morality, defamation, contempt of court, and incitement to an offence. "Annoyance," "inconvenience," and "insult" are not among them.
3. **Vagueness:** The terms used were not defined, so a person could not know beforehand what conduct was forbidden. Law enforcement was left with unchecked discretion.
4. **Overbreadth:** The Section covered protected speech together with unprotected speech, without separating them.

5. **Chilling effect:** Fear of arrest would discourage people from expressing legitimate opinions.
6. **Distinction between discussion, advocacy, and incitement:** The Court held that only incitement can be restricted. Mere discussion or advocacy of even unpopular views is protected.

The Court did **not** strike down the rest of the Act. It upheld **Section 69A** (the blocking power) and read down **Section 79(3)(b)**, as covered in the earlier notes.

Current position

Section 66A is **void and unenforceable**. Even so, some police authorities continued to register cases under it. The Supreme Court expressed concern about this in **2021**, and directed the Centre and the States to stop and withdraw such cases in **2022**. Offensive or threatening online conduct can still be prosecuted under other laws, such as the Indian Penal Code provisions on criminal intimidation, defamation, and obscenity, and other IT Act provisions like Sections 67 and 66D.

Points to remember for an exam

- **Inserted by:** IT (Amendment) Act, 2008
- **Punishment:** up to 3 years and fine
- **Struck down:** 24 March 2015, *Shreya Singhal v. Union of India*
- **Grounds:** violation of Article 19(1)(a), vagueness, overbreadth, and chilling effect on free speech

I wrote the details of the arrests and the later 2021 and 2022 orders from memory, so verify them before quoting them in an exam. I can also add this expanded explanation to your notes file if you'd like.